Higher National Diploma in Quantity Surveying
2nd Year, Second Semester Examination – 2019
QS 22032 Contract Law II

Instructions for Candidates:
Answer four questions only
All Questions carry equal marks

No. of questions : 05
No. of pages : 02
Time : 02 hours

Question 01

1. Mention four requirements of a valid offer. (04 Marks)
2. Briefly explain an invitation to treat. (05 Marks)
3. Explain the expedition theory. (05 Marks)
4. Define the term Duress under contract law. (05 Marks)
5. Sanath asked Nimali whether she would like to buy his car for Rs. 2,000,000. Nimali asked whether he would like to sell it for Rs. 1,800,000. Sanath remained silent and sold it to Sanka for Rs. 2,000,000. Nimali agreed to buy it for Rs. 2,00,000. Sanath seeks your legal advice regarding the situation. (06 Marks)

(Total 25 Marks)

Question 02

1. Name five types of construction contract and briefly explain one of them. (05 Marks)
2. What are the objectives of Procurement process? (05 Marks)
3. Mention any five methods of procurement. (05 Marks)
4. Explain 'Two stage Bidding' and 'Two Envelop Bidding'. (05 Marks)
5. What are the methods of Public Procurements? (05 Marks)

(Total 25 Marks)

Question 03

1. State four dispute settling methods introduced under the Industrial Dispute Act. (04 Marks)
2. Mrs. Kumari delivered her second child and it was a still birth. She seeks advice regarding the maternity leave. (05 Marks)
3. Identify the sector of each employee given below and briefly discuss the laws applicable to each of the following worker/ employee.

a) Dasun who works as an accountant in Rank (Pvt) Ltd. (02 Marks)

b) Kachana who works as a chief engineer in the Department of National Housing. (02 Marks)

c) Kamal who worked for 10 days as a labourer in the 'Lalan Rubber Estate. (01 Mark)

employee trust fund

4. In which instances are the benefits of the ETF could be withdrawn. (05 Marks)

5. Nayana worked for 10 years as a Senior HR Executive, in Macro Holdings (Pvt) Limited which has 25 employees from the beginning. His last drawn salary was Rs. 40,000 and calculate the amount of gratuity could obtained by Nayana. (06 Marks)

(Total 25 Marks)

Question 04

1. Name four procurement committees in Government Sector. (04 Marks
2. What is meant by 'Contract Data Sheet'? (05 Marks
3. Distinguish lump-sum contract from turnkey contract. (05 Marks)
4. State five essential components of a construction contract. (05 Marks)
5. What are the traditional and alternative methods of building procurement? (06 Marks)

(Total 25 Marks)

Question 05

1. Write short notes on any 5 of the of following.

   a. FIDIC

   b. Limited tender procedure

   c. Difference between condition and warranty

   d. Contractual capacity

   e. Role of the Quantity Surveyor

   f. Unit price contracts (5x5 Marks)

(Total 25 Marks)